

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4479

By: Deck

AS INTRODUCED

An Act relating to Oklahoma Higher Learning Access Program; requiring students beginning in certain school year to complete application for participation in the Oklahoma Higher Learning Access Program in order to graduate from a public high school; providing exceptions; directing the State Department of Education to develop and publish opt-out form; directing Oklahoma Higher Learning Access Program contact person to collect certain information; requiring collection of information to comply with certain act; providing for promulgation of rules by State Board of Education; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2608 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Except as provided for in subsection B of this section, beginning with the 2026-2027 school year, in order to graduate from a public high school accredited by the State Board of Education, students shall complete and submit an application for participation in the Oklahoma Higher Learning Access Program provided for in

1 Section 2602 of Title 70 of the Oklahoma Statutes by December 31 of
2 their twelfth-grade year.

3 B. A student shall not be required to comply with the
4 provisions of subsection A of this section if:

5 1. The student's parent or legal guardian submits a signed form
6 authorizing the student to opt out of the requirement of subsection
7 A of this section;

8 2. A student age eighteen (18) or older submits a signed form
9 authorizing him or her to opt out of the requirement of subsection A
10 of this section; or

11 3. A school counselor authorizes a student to opt out of the
12 requirement of subsection A of this section.

13 C. The State Department of Education shall develop and publish
14 an opt-out form to be used by school districts, charter schools, and
15 virtual charter schools for the purposes outlined in subsection B of
16 this section.

17 D. The Oklahoma Higher Learning Access Program contact person
18 provided for in subsection B of Section 2605 of Title 70 of the
19 Oklahoma Statutes shall collect information regarding student
20 compliance with subsection A or B of this section. The collection
21 and storage of the information shall comply with the Family
22 Educational Rights and Privacy Act of 1974 (FERPA).

23 E. The State Board of Education shall promulgate rules to
24 implement the provisions of this section, which shall address the

1 method by which a student is to provide proof to a school district,
2 public charter school, or virtual charter school that the student
3 has completed and submitted an application for participation in the
4 Oklahoma Higher Learning Access Program as required by subsection A
5 of this section.

6 SECTION 2. This act shall become effective July 1, 2026.

7 SECTION 3. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11

12 60-2-15375 AQH 12/08/25

13

14

15

16

17

18

19

20

21

22

23

24